Bond

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(Rs. Zero Only)

Deponent

Name : One Mobikwik systems Limited

H.No/Floor : Na Sector/Ward : 53 Landmark : 1st floor block b pegasus one

City/Village : Golf course ro District : Gurugram State : Haryana

Phone : 92******76

Purpose : GENERAL AGREEMENT **to be submitted at Concerned office**

The authenticity of this document can be verified by scanning this QrCode Through smart phone or on the website https://egrashry.nic.in

THIS STAMP PAPER FORMS AN INTEGRAL PART OF THE PARTNER SERVICE AGREEMENT EXECUTED BY AND BETWEEN BLOSTEM FINTECH PRIVATE LIMITED AND ONE MOBIKWIK SYSTEMS LIMITED

PARTNER SERVICE AGREEMENT

This Agreement in entered and executed at Gurugram the last date of signatures of a Party and shall be deemed to be effective from 12th January 2024 ("Effective Date"):

By and Between

Blostem Fintech Private limited, CIN – U74999DL2021PTC387354, a company incorporated under the provisions of Companies Act, 2013 and having its principal place of business at 8A, 37G, GF, Plot no.- 37G, Block no. 8A, W.E.A. Karol Bagh, Delhi – 110005, ("**Blostem**" or "**Service Provider**") which expression shall unless repugnant to the context or meaning include all its successors and permitted assigns) of the One Part.

AND

One MobiKwik Systems Limited, a company incorporated under the laws of India, having its registered address at Unit 102, 1st Floor, Block- B, Pegasus One, Golf Course Road, Sector 53, Gurugram -122003 ("**Subscriber**") which expression shall unless repugnant to the context or meaning include all its successors and permitted assigns) of the Other Part.

Service Provider and Subscriber are each referred to herein as a "Party" and collectively as the "Parties."

WHEREAS Service Provider is an entity that offers a wide range of investment products including but not limited to Fixed Deposits (FDs), Bonds, Mutual Funds, and more, through its online platform i.e., Binvestt and making it available through partners i.e Subscribers.

WHEREAS based on the representations and warranties the Subscriber wishes to use the services of Service Provider by way of an API (defined below) integration ; and make investment products available to its Customers including but not limited to Fixed Deposits (FDs), Bonds, Mutual Funds, P2P, etc. and any other ancillary service and/or facilities as may be mutually agreed between the Parties from time to time, on the terms and conditions contained in this Agreement.

This contract sets out the rights and obligations of each Party as they relate to the provision of the services to be provided for the consideration as set herein.

WHEREAS, the scope of work (SOW) and business between the Parties is herein attached with the present Agreement as **Annexure I**.

NOW THEREFORE, in consideration of the mutual promises and covenants contained herein, and other good and valuable consideration, the sufficiency of which is hereby acknowledged, the Parties agree as follows:

1 DEFINITIONS

As used in this Agreement, the following terms have the meanings given below. Any capitalized term not defined in this Clause 1 shall have the meaning ascribed to it in the particular section (s) of this Agreement in which it is used.

1.1 "**Affiliate**" means any corporation, company, partnership, joint venture, association, trust, other legal entity, or individual that controls, is controlled by, or is under common control with one of the Parties.

1.2 "**Applicable Laws"** shall mean any statute, law, regulation, ordinance, rule, judgment, order, protocols, notification, circular, decree, bye-law, approval, government reproduct/services, order, directive, guideline, policy, requirement, or other governmental restriction or any similar form of decision of, or determination by, or any interpretation or adjudication having the force of law of any of the foregoing, by any government authority having jurisdiction over the matter in question. For clarity, any reference to Applicable Law shall include laws as may from time to time be enacted amended, supplemented, or re-enacted.

1.3 "**Application**" means a platform/user interface developed by Subscriber.

1.4 "**Application Program Interface**" or "**API**" shall mean (i) those white labeled application program interfaces that are made available by the Service Provider to the subscriber, under the terms of this Agreement.

1.5 **"Investment Product(s)"** shall mean interest bearing fixed deposits issued by Service Provider Partner(s).

1.6 "**Personally Identifiable Information**" or "**PII**" shall mean any information that alone or in combination with other information, relates to a specific, identifiable, individual person or is otherwise included in the definition of "personal information" or "personal data" as defined under the terms of an applicable data protection law.

1.7 "**Product(s)**" means the API(s) provided to Subscriber for the purpose to grant access to the Investment Products under the terms and conditions of this Agreement and any applicable addendums as set forth on **Annexure I.**

1.8 "**User**" means an employee, agent or independent contractor of Subscriber who has a legitimate business need to access the Product(s)/services on Subscriber's behalf, and whose access to the Product/services would not violate the terms and conditions of this Agreement or any applicable addendum hereto.

1.9 "**Customer/s**" shall mean such customers of the Subscriber who applies, on the Website / Mobile Application, for opening any investment product with the provider of such investment product through the Subscriber, as per the process agreed under this Agreement.

1.10 **"Facility"** shall mean the facility provided by Service Provider to apply any investment product, through online portal i.e. Mobile Application and/or Website of the Subscriber.

1.11 **"Mobile Application''** shall mean mobile application of Service Provider branded as "MobiKwik".

1.12 "**Service/s**" shall mean the Service as mentioned at **Annexure I** below.

1.13 **"Service Provider's Partner(s)"** shall mean the Reserve Bank of India ("RBI") licensed Banks and Non-Banking Financial Companies ("NBFC") who had developed and owns the Investment Products.

1.14 **"Website"** shall mean www.mobikwik.com.

2 INTERPRETATION

2.1 As used herein and in any Annexure, or Addendum hereto unless otherwise stated:

2.2 A reference to a clause or to an Annexure is to a clause in or Annexure to this Agreement;

2.3 Words in the singular shall include the plural and vice versa. Further, the use of words in the singular or plural, or with a particular gender, shall not limit the scope or exclude the

application of any provision of this Agreement to any person or persons or circumstances except as the context otherwise permits;

2.4 The headings in this Agreement are for convenience only and are not intended to have any legal effect nor purport to be complete or accurate descriptions of content thereof and shall not be used to interpret the provisions of this Agreement;

2.5 Words denoting persons shall include individual, corporation, partnership, trust, limited liability Company, association or other entity;

2.6 Unless and until specified, specifically in this Agreement, any reference to 'days' or 'working days' means 'business days', i.e., any day other than: (i) Sunday, (ii) a day on which the banks in India and/or Reserve Bank of India are closed for business/clearing, or (iii) a day on which normal business could not be transacted due to storms, floods, bandhs, strikes etc.;

2.7 The terms "hereof", "herein", "hereto", "hereunder" or similar expressions used in this Agreement mean and refer to this Agreement and not to any particular clause of this Agreement;

2.8 The Schedules annexed to this Agreement form an integral part of this Agreement and will be in full force and effect as though they were expressly set out in the body of this Agreement;

2.9 Reference to any legislation or law or to any provision thereof shall include references to any such law as it may, after the date hereof, from time to time, be amended, supplemented or re-enacted, and any reference to a statutory provision shall include any subordinate legislation made from time to time under that provision.

3 SCOPE OF ARRANGEMENT AND SERVICES

3.1 The Service Provider has entered into partnership with Service Provider's Partners for making available and sourcing customers for their Investment Products. In addition to this, the Service Provider has also developed certain white label APIs and Products which the Service Provider will make available to the Subscriber.

3.2 Service Provider hereby grants the Subscriber a non-exclusive right to market, promote and make available the Investment Products to its Customers through its Mobile Application and Website.

3.3 The Service Provider hereby unconditionally agrees and acknowledges that Subscriber's role in making available the Investment Products to its Customers shall be merely that of a 'facilitator'.

3.4 The Service Provider's role is that of a technology service provider and the Parties agrees that the Service Provider is not the provider/issuer of the Investment Product(s).

3.5 The Service Provider agrees to provide the Products and undertakes the obligations as detailed in Annexure I. The Service Provider agrees to provide access to the Products at the Service Levels set out in Annexure III to this Agreement.

3.6 In addition to the services and Products provided by the Service Provider, the Service Provider shall also provide maintenance and support services as set out in Annexure III to this Agreement.

3.7 In order to enable the Customer to apply for the Investment Product through online mode (Website/Mobile Application of the Subscriber), an API integration will be done by the Parties, in such manner as agreed between the Parties herein. The Service Provider agrees to deploy adequate resources for the integration to take place in a timely manner. Each Party shall bear its own cost at their respective ends with respect to the integration.

3.8 Licenses:

3.8.1 Subject to the terms and conditions of this Agreement, Service Provider hereby grants to the Subscriber, and Subscriber hereby accepts, a non-exclusive, non-transferable, non-

sublicensable and revocable right and license during the Term to access and use the Products solely to make available and facilitate purchase of Investment Products by its Customers.

3.8.2 The Service Provider grants to the Subscriber a non-exclusive, non-transferable licence to the data with respect to the Investment Products it provides to the Subscriber for the purposes of making available and facilitating the purchase of Investment Products by its Customers.

3.8.3 The Service Provider subject to clause 7.16 (below)_grants to the Subscriber a non-exclusive, non- transferable, royalty free, non-sublicensable and revocable license to Service Provider's Partner(s) brand, logo, trademark, tradenames etc. ("Marks") for the purposes of display of such Marks on the Mobile Application/Website and other marketing and promotional materials prepared by the Subscriber for making available and facilitating purchase of Investment Products by its Customers.

3.8.4 The Service Provider shall appoint a dedicated point of contact ("Service Manager") for all the queries of the Subscriber. The details of the appointed Service Manager shall be provided to the Subscriber within 3 days of execution of this Agreement. In the event the Service Provider's changes the Service Manager for any reason whatsoever the Service Provider shall appoint and provide the details of the alternative Service Manager at least seven (7) days prior to the change of the current point of contact.

4 CONSIDERATION

4.1 In consideration of promotion and facilitation of the Investment Products by the Subscriber, the Service Provider shall promptly pay to the Subscriber a fees, on the payment terms as specified in details in attached Annexure - II herein.

5 REPRESENTATION AND WARRANTY

5.1 Each Party represents and warrants that:

5.1.1 It has the right, power and authority to enter into this Agreement and to perform all of its respective obligations under this Agreement and that the performance of such obligations shall not conflict with or result in a breach of any agreement to which it is a party or is otherwise bound.

5.1.2 Parties have the necessary knowledge, experience, expertise, adequate and competent staff, systems, equipment and procedures and capability to duly perform its duties and obligations in accordance with the terms of this Agreement.

5.1.3 Parties acknowledge that the execution of this Agreement does not violate or breach any covenants, stipulations or conditions of any agreement, deed or document entered into by the Parties and any third party/parties.

5.1.4 In case of any specific equipment or material provided by any Party, such Party warrants that the equipment or material shall perform as per the Documentation to be provided by such Party along with such equipment or material;

5.1.5 Refrain from engaging in any illegal, unfair or deceptive trade practices, unethical business practices whatsoever.

5.2 The Service Provider additionally represents and warrants that:

5.2.1 It has necessary license, permission, authorizations from Service Provider Partner(s)to provide the Services under this Agreement and make available Investment Products to the Subscriber for further promotion and facilitation to its Customers.

5.2.2 It has and shall throughout the Term of this Agreement continue to possess all the right, licenses, authority, permissions from the Service Provider's Partners for licensing and

provision of their data, Investment Products and Marks to the Subscriber for the purposes as set out in this Agreement.

5.2.3 It has and shall continue to provide the Services and Products during the term of this Agreement, with all reasonable skill, care, promptness and diligence in accordance with the highest professional industry practice and standards attainable by similar professionals and display best efforts providing the Services and the Products.

5.2.4 Any instructions, data, information with respect to the Investment Products provided by the Service Provider shall be deemed to be provided by the Service Provider's Partners.

5.2.5 It is not the issuer of the Investment Product(s), the Service Provider shall only act as a technology service provider providing Products and undertaking obligations as detailed in this Agreement.

5.3 Subscriber shall:

5.3.1 share the information including PII as shared by the Customer(s) on "as is" basis without any modification to the same.

5.3.2 Subscriber shall ensure that the PII data shared by Customer has been declared as correct and requisite consent has been taken from the Customer to share it with Service Provider and Service Provider's Partners.

5.3.3 Subscriber shall share the data points including personal data of the Customer, KYC, Bank account details and any other information (together hereinafter referred to as "Customer Information") which may be required by the Service Provider Partners for the purposes of provision of Investment Product(s). It has been agreed by the Service Provider that the Customer Information shall not be used by Service Provider for any reason whatsoever other than for purposes of provision of Investment Product(s).

5.3.4 make best endeavors to provide all the information in a timely manner and when required by Service Provider.

5.3.5 ensure that the Services are not misused.

5.4 DISCLAIMER OF WARRANTIES

5.4.1 THE SERVICES ARE PROVIDED "AS IS." SUBJECT TO THE REPRESENTATIONS AND WARRANTIES PROVIDED HEREIN AND THE SERVICE LEVEL AGREEMENTS UNDER THIS AGREEMENT, SERVICE PROVIDER MAKES NO REPRESENTATIONS OR WARRANTIES, EXPRESS OR IMPLIED, OR TO ANY OTHER PERSON OR ENTITY WITH RESPECT TO THE SERVICES HEREUNDER, AND SERVICE PROVIDER DISCLAIMS ALL IMPLIED WARRANTIES WITH RESPECT TO THE SERVICE INCLUDING, WITHOUT LIMITATION, THE IMPLIED WARRANTIES OF TITLE, MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE. SERVICE PROVIDER DOES NOT WARRANT THAT THE SERVICES WILL BE ERROR FREE OR HACKPROOF OR WILL PERFORM IN AN UNINTERRUPTED MANNER.

5.4.2 The Parties agree and acknowledge that the Service Provider's ability to provide the Services may dependent on third parties, and the Service Provider shall not be liable for any delays, errors, interruptions, inaccuracies, communication failures, or defects with respect to the Services or any consequent loss, or damage that is attributable to such third parties. The Service Provider makes no representations and excludes all warranties and liabilities arising out of or pertaining to such third-party services.

6 OBLIGATIONS OF THE SUBSCRIBER

6.1 Subscriber shall not directly or indirectly allow through itself or through its personnel, officers or representatives to:

6.1.1 Distribute, disassemble, de-compile or reverse engineer the Services or permit or encourage any third party, including its subsidiaries and affiliates, to do so or permit any third party to access the Services, except as expressly provided in this Agreement.

6.1.2 Provide the Services to anyone other than Customers under this Agreement.

6.1.3 Try to hack, crash or sabotage the Services.

6.1.4 Use the Services in any manner to provide time sharing and computer services;

6.1.5 Sell, resell, rent or lease or modify or create derivative of any part of the Services;

6.1.6 Attempt to gain unauthorized access to the Services and related systems or networks;

6.1.7 use the Services for any illegal purpose or in any manner which is not anticipated or is a misuse of the Services.

6.2 The Subscriber shall use the Services diligently, with utmost care and avoid any kind of negligence, fraud in usage of Services.

6.3 The Subscriber shall be subject to all terms and conditions of this Agreement for the purpose of this Agreement.

6.4 The Subscriber shall abide by all Applicable Laws.

6.5 Subscriber agrees to use or authorize use of the Product/services/services/API only for lawful purposes in compliance with Applicable Laws.

6.6 It shall on its Website/Mobile Application, provide the Customer an option of submitting an application for opening the account for the proposed Investment Product(s) on such terms and conditions as may be prescribed by the Service Provider in this regard from time to time, in writing. For the purpose of providing such an option, Service Provider shall develop an appropriate page on the Website / Mobile Application as may be mutually agreed between the Parties in writing.

6.7 The Parties agree that Subscriber shall not be responsible for or made a party to any disputes raised by the Customers with respect to the Investment Product(s).

6.8 The Subscriber shall solely be responsible and liable:

6.8.1 for obtaining all requisite approvals and ensure compliance with the Applicable Law. To further clarify, the Subscriber shall ensure that it obtains consent from each Customer for any authentications (to be carried in the due course of providing the Services) to fetch data from the original database (which may be owned or maintained by third parties). The Service provider assumes that the Subscriber has collected valid authorizations or release forms prior to availing the Services. In case the Subscriber does not furnish the authorizations to the Service Provider at the time of starting the verification, it shall be deemed that the Subscriber has taken valid authorizations from the Customers and the Service Provider shall not be liable for the same.

6.8.2 The Subscriber shall comply with the provisions of the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016, and the applicable Rules and Regulations framed thereunder ("the Aadhaar Act"). The Subscriber shall obtain the consent of the Customer for the purpose of the Services, including, but not limited to, (i) the transmission of their sensitive personal information, if any, and (ii) storing images of various identification and other documents of the End Customers, including, without limitation, Aadhaar card, PAN card, driving license, voter identity card retaining such images, and forwarding such images to the Service provider for the purpose of this Agreement in the manner contemplated in this Agreement.

7 OBLIGATIONS OF THE SERVICE PROVIDER

7.1 Service Provider shall render the Services in a lawful manner.

7.2 Service Provider confirm that it holds and maintain in full force and effect all applicable licenses, permits, registrations and permissions as may be required for the purpose of rendering the Services under this Agreement and for matters incidental thereto.

7.3 It shall promptly inform Subscriber of any expiry, suspension, or modification of any authorizations in relation to any Services or initiation of any adverse action by any relevant authority concerned in relation thereto;

7.4 It shall, at its own costs, undertake all investments and arrange infrastructure facilities including repair and upgradation thereof, required for rendering the Services.

7.5 Service Provider shall Maintain all books of accounts, records, documents require to be maintained, under this agreement.

7.6 Service Provider will ensure uninterrupted service to meet the Subscriber's requirement.

7.7 Service Provider shall be solely responsible and liable for payment of salaries, wages, bonuses, payroll taxes or accruals in respect of the its staff engaged for delivering the services under this agreement.

7.8 Service Provider shall be responsible for the documents/instruments handed over to/collected/received by Service Provider. or its staff and shall account for the same.

7.9 Service Provider shall not assign the agreement and or any of its obligations under this agreement to any third party without the prior written consent of the Subscriber.

7.10 The Service Provider shall undertake the API integrations (if any) required under this Agreement.

7.11 The Service Provider shall provide information in relation to the investment product "as is" provided by the partner NBFC / Bank without any modifications.

7.12 The Service Provider shall ensure that the information with respect to the Investment Product(s) made available under this Agreement by the Service Provider shall at all times in parity with the information available on the platform of the Service Provider and on any third party's platform.

7.13 The Service Provider shall immediately but no later than twenty four (24) hours notify the Subscriber in event of any change in the terms and conditions, features of the Investment Product(s).

7.14 The Service Provider shall ensure safety and security of the information including the PII of the Customer(s) of the Subscriber as per the Applicable Laws and terms of this Agreement.

7.15 The Service Provider shall take adequate measures to ensure that the APIs shall not contain or transfer any viruses, trojan horses, trap doors, worms or any other malicious computer programming routines to the Subscriber's systems that might damage Subscriber's technology systems.

7.16 The Service Provider agrees to take all prior approvals and permissions from the Service Provider Partner(s) before providing any Investment Product(s) to the Customer(s) of the Subscriber. Service Provider shall ensure that no Investment Product shall be made live without prior requisite permissions from the Service Provider Partner(s) and the Service Provider shall promptly share a copy of the permissions received from Service Provider Partner with the Subscriber pursuant to this clause.

7.17 The Service Provider agrees that it will share the data with respect to the Investment Products availed by the Customers in a timely manner.

7.18 Variations:

7.18.1 Any changes, modifications, amendments etc. ("Modification") which the Service Provider will make to the APIs or the Products or their specifications other than maintenance and support services as set out in Annexure III to this Agreement. The Service Provider will give the Subscriber 30 (thirty) Business Days' notice prior to making any Modification to the APIs, Products.

7.18.2 Any Modification undertaken by the Service Provider to the APIs or the Products which in opinion of the Subscriber changes the nature of the Services or materially reduced the Services, the Subscriber shall be entitled to terminate the Agreement upon 30 Business Days notice to the Service Provider.

8 CONFIDENTIALITY AND NON-DISCLOSURE

8.1 Definition. For the purpose of this Agreement "Confidential Information" means any information disclosed by or on behalf of one Party ("Discloser/Disclosing Party") to the other ("Recipient"), or that the Recipient otherwise has access to by virtue of this Agreement whether disclosed orally, visually, in print or electronic format or otherwise, which: (a) includes, but is not limited to, technical or nontechnical data, a formula, pattern, program, device, method, technique, drawing, process, business and marketing plans, pricing, financial, legal, investigative and audit information, product plans, or a list of actual or potential customers, vendors or suppliers, and all copies and derivatives of such information; and is (b) marked "confidential" or "proprietary" or with a similar legend; (c) identified orally at the time of disclosure as confidential or proprietary; or (d) given the context of the disclosure or the nature of the information, should reasonably by understood by the Recipient to be confidential or proprietary. "Confidential Information" also includes the fact that the parties entered into this Agreement.

8.2 Nondisclosure and Use of Confidential Information. During the term of this Agreement, and for so long as it retains the Discloser's Confidential Information, the Recipient shall not use, disseminate, reproduce or permit to be used, disseminated or reproduced, or in any way disclose the Confidential Information to any person or entity except as required by law, as specifically permitted in this Agreement, or as authorized in writing by the Discloser. Absent prior written consent of the Discloser, the Recipient shall disclose Confidential Information only to those of its employees, officers, consultants, and agents, ("Representatives") who, due to their role and responsibilities with the Recipient, need to know the Confidential Information in order to carry out their responsibilities and only if such Representatives (a) are informed of the confidential nature of the information and (b) are contractually bound to nondisclosure and other confidentiality restrictions no less restrictive than the terms and conditions of this Agreement. Recipient will use no less than the same standard of care to prevent disclosure, publication or dissemination of Discloser's Confidential Information as it uses with its own similar information that it does not wish to disclose, publish or disseminate, but in no event shall such standard be less than reasonable care.

8.3 Incident Notice. Recipient shall promptly notify Discloser in writing upon becoming aware of any actual, or suspected, unauthorized access to or use or disclosure of Confidential Information, which notice shall include a detailed description of the circumstances of the unauthorized access, use or disclosure and the parties involved. For any such unauthorized acts by or attributable to Recipient, Recipient shall provide full cooperation and assistance to the Discloser, at the Recipient's cost and expense, to halt and mitigate the effects of such unauthorized access, use or disclosure.

8.4 Exceptions. The obligations of confidentiality and usage restrictions in this Agreement will not apply to any information that: (a) is or becomes available to the public through no fault or omission of the Recipient or its Representatives; (b) is lawfully known or independently

developed by Recipient without use of Confidential Information of the Discloser; (c) is lawfully disclosed to the Recipient without restriction by a third party lawfully entitled to possession of the Confidential Information and who did not violate any contractual, legal or fiduciary obligation to the Discloser by providing such Confidential Information to Recipient; or (d) is approved for release by written authorization of the Discloser.

8.5 Legally Required Disclosure. If Recipient is required by legal process or operation of applicable law to disclose any Confidential Information of the Discloser, Recipient shall be permitted to make such a disclosure provided that it first promptly notifies Discloser of such disclosure requirement in writing (to include a copy of any applicable subpoena or order) and affords the Discloser an opportunity (if permitted by law) to oppose, limit or secure confidential treatment for such required disclosure. Recipient will, at Discloser's expense, cooperate with Discloser's efforts to obtain a protective order or other reasonable assurance that confidential treatment will be applied to the Confidential Information. If no such protective order or other measure can be obtained and Recipient or any of its Representatives are, in the opinion of its counsel, required to disclose Confidential Information as a matter of law, Recipient may disclose to the authority compelling disclosure only that part of the Confidential Information that is strictly required to be disclosed and will, to the extent it is legally able, work with Discloser and Discloser's counsel regarding the scope and wording of the disclosure.

8.6 Return/Destruction of Information. Upon demand from the Discloser, all Confidential Information in Recipient's possession shall be returned or securely destroyed by the Recipient and any copies (and derivative materials containing the Confidential Information) deleted or otherwise securely destroyed. If Confidential Information is destroyed, Recipient will use a secure method of destruction (e.g., burning, pulverizing, or shredding; erasure of electronic files; retaining a properly vetted document destruction company) and will certify the destruction in writing.

8.7 Equitable Relief. Recipient acknowledges that (a) any unauthorized use or disclosure of the other Discloser's Confidential Information may cause irreparable damage to Discloser, its suppliers, subcontractors or other affected parties, (b) there may be no adequate remedy at law for a breach of the obligations in this section, (c) that any such breach may result in harm that is difficult if not impossible to assess on a monetary basis alone, (d) and that legal damages may not be sufficient compensation for such breach or any threat thereof. Therefore, the Discloser may enforce its rights under this section by appropriate equitable means, including injunctive relief, in addition to any other remedies that may be available to Discloser at law or in equity.

8.8 This Clause shall remain in full force and effect in the event of any termination of this Agreement.

9 INTELLECTUAL PROPERTY RIGHTS

9.1 Service Provider shall own and continue to own all intellectual property rights, titles and interest in the Services, software, circuit diagrams, domain names, designs, tools, applications, switch, interface or in any other work generated or created during the provision of Services. In case of any customization to its Services, Service Provider shall solely possess the intellectual property rights in the said customizations.

9.2 Each Party shall continue to own all the rights, title and interest in their respective intellectual property.

9.3 Either Party shall not at any time either during the tenure of this Agreement or thereafter apply for registration of any trademark or work similar, deceptively similar, competitive or identical with the other party's trademark or work.

9.4 This Agreement shall not construe any assignment, license or creation of any right of any intellectual property rights in whatever manner.

10 RECORDS & AUDITS

10.1 During the Term of this Agreement, and for one (1) year after that, each Party will have the right at its expense to audit, directly or through independent auditors, each Party's records to ensure compliance with the terms and conditions of the Agreement. Such audits may be conducted during normal business hours upon no less than fifteen (15) business days written notice of intent to audit. If any gaps are found in the audit, the parties shall mutually agree to formalize a plan with respect to rectification of such errors/gaps and the same need to be rectified by the respective parties within the time period agreed between the Parties.. Failure to rectify the gaps may lead to termination of the Agreement with costs at actual. Cost of the audit shall be borne by respective Parties.

11 FRAUD & ANTI – CORRUPTION

11.1 During the Term, no Party shall engage in any corrupt practice, fraudulent practice, collusive practice, coercive practice or obstructive practice in relation to the performing their respective obligations hereunder.

11.2 For the purpose of this Clause, the terms set forth below shall mean as follows:

11.2.1 **"Corrupt practice"** is the offering, giving, receiving or soliciting, directly or indirectly, anything of value to improperly influence the actions of another Party and includes all acts, deeds and things which are prohibited under the laws of India;

11.2.2 **"Fraudulent practice"** is any act or omission, including a misrepresentation, that knowingly or recklessly misleads or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation;

11.2.3 **"Collusive practice"** is an arrangement between two or more parties designed to achieve an improper purpose, including influencing improperly the actions of another party;

11.2.4 **"Coercive practice"** is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party;

11.2.5 **"obstructive practice"** is deliberately destroying, falsifying, altering or concealing of material evidence or making false statements during any investigation into allegations of a corrupt, fraudulent, coercive or collusive practice; and/or threatening, harassing or intimidating any third party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or acts intended to materially impede the exercise of Party inspection and audit rights.

11.3 Each Party shall have the right to terminate this Agreement by giving a written notice of Fifteen (15) days if the other Party has engaged in corrupt practices, fraudulent practices, collusive practices, coercive practices or obstructive practices.

12 DATA PROTECTION

12.1 The storage, usage and transmission of all information including PII obtained by the Parties herein, shall at all times be in accordance with the Information Technology Act, 2000 read with Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011, the Digital Personal Data Protection Act, 2023 each as amended and all other applicable laws in India.

12.2 The Service Provider shall only collect and process the data and PII of Subscriber's Customers which is essential to provide the Investment Products and no excess data or PII of the Customer will be collected, stored or processed by the Service Provider.

12.3 The Parties acknowledge and agree that, during the term of this Agreement, the Parties may receive or have access to PII, in the course of making Investment Products available to the

Customers. The Parties shall comply with the terms and conditions set forth in this Agreement in its collection, receipt, transmission, storage, disposal, use and disclosure of such PII and be responsible for the unauthorized collection, receipt, transmission, access, storage, disposal, use and disclosure of PII under its control or in its, its employees, officers or agents possession (collectively "Authorized Persons"). The Service Provider shall be responsible for, and remain liable to, the Subscriber and the Customers for the actions and omissions of all Authorized Persons concerning the treatment of PII as if they were Service Provider's own actions and omissions.

12.4 The Service Provider shall only undertake the processing of such PII as reasonably required in connection with the performance of its obligations in relation to the investment product and Services.

12.5 The Parties shall at all times have appropriate technical and organizational measures in place to:

12.5.1 prevent unauthorized or unlawful processing of any PII;

12.5.2 protect any PII against accidental loss, destruction or damage;

12.5.3 use and process PII solely and exclusively to the solely for the purposes of provision of API and services pursuant to the terms and conditions of this Agreement, and not use, sell, rent, transfer, distribute, or otherwise disclose or make available PII for it's own purposes..

12.6 The Parties shall store and process, all the PII only in the geographical limits of India, in no event the PII shall be transferred, processed, stored, used outside geographical limits of India without each other's prior written consent.

12.7 Security Breach Procedures:

12.7.1 The Service Provider shall:

12.7.1.1 provide Subscriber with the name and contact information for an employee of the Service Provider who shall serve as Subscriber's primary security contact and shall be available to assist the Subscriber during office hours (10:00am to 6:00pm), Six (6) days per week except Sunday as a contact in resolving obligations associated with a Security Breach;

12.7.1.2 notify Subscriber of a Security Breach as soon as practicable, but no later than six hours after Service Provider becomes aware of it; and

12.7.1.3 notify Subscriber of any Security Breaches by e-mailing Subscriber. In such report, Service Provider shall identify (i) the nature of the unauthorized use or disclosure (ii) the information used or disclosed (iii) who made the unauthorized use or received the unauthorized disclosure (iv) what Service Provider has done or shall do to mitigate the effects of the unauthorized use or disclosure and (v) what corrective action Service Provider has taken or shall take to prevent future similar unauthorized use or disclosure.

12.7.1.4 Immediately following Service Provider's notification to Subscriber of a Security Breach, the parties shall coordinate with each other to investigate the Security Breach. Service Provider agrees to fully cooperate with Subscriber in Subscriber handling of the matter, including, without limitation: (i) assisting with any investigation; (ii) providing Subscriber with physical access to the facilities and operations affected; facilitating interviews with Service Provider employees and others involved in the matter; and (iv) making available all relevant records, logs, files, data reporting and other materials required to comply with applicable law, regulation, industry standards or as otherwise reasonably required by Subscriber

12.7.1.5 Subscriber shall use best efforts to immediately remedy any Security Breach any further Security Breach at Service provider's expense in accordance with applicable privacy rights, laws, regulations and standards.

12.7.1.6 The Service Provider shall purge all the PII of the Customers within 7 (seven) days of

successful issuance of Investment Product(s) by the Service Provider's Partner subject to retention of the following PII data of the Customer – Name, Nominee Detail and Registered Bank Account for providing post issuance customer service to such Customers. The PII so retained by the Service Provider will be purged from its systems within 30 days, upon earlier of (i) maturity of the Investment Product(s) or (ii) pre-mature withdrawal of amounts from the Investment Product(s) by the Customer. Further, any time during the term of this Agreement at the Subscriber's written request or upon the termination or expiration of this Agreement for any reason, Service Provider shall, and shall instruct all Authorized Persons to, promptly delete all copies, whether in written, electronic or other form or media, of PII and Subscriber's information in its possession or the possession of such Authorized Persons, or securely dispose of all such copies, and certify in writing to the Subscriber that such PII has been disposed of securely. Service Provider shall comply with all reasonable directions provided by Subscriber with respect to the disposal of PII.

12.8 Any breach of this clause shall be deemed to be a material breach of this Agreement. In such event, the Subscriber may terminate the Agreement with 7 (seven) days notice. Subscriber may terminate the agreement without further liability or obligation to Service Provider irrespective.

12.9 Nothing contained in this Agreement shall be construed as granting or conferring to Service Provider any rights, licenses, title or ownership or a right to grant a security interest in or otherwise transfer any right from the Subscriber, either expressly or by implication with respect to any Confidential Information or PII. The Confidential Information and the PII shall always remain the property of the Subscriber with respect to the relation between Subscriber and the Service Provider.

13 ETHICS & CODE OF CONDUCT

13.1 Each of the Parties declare and undertake to other Party the following:

13.1.1 That they will conduct all its dealings in a very ethical manner and with the highest business standards.

13.1.2 That they will provide all possible assistance to the other Party in order to investigate any possible instances of unethical behavior or business conduct violations by an employee.

13.1.3 That they will disclose forthwith any breach of these provisions that comes to their knowledge to allow for timely action in their prevention and detection.

14 TERM AND TERMINATION

14.1 Term and Termination. The term of this Agreement commences on the Effective Date and shall continue until unless terminated by the Parties in accordance with terms of this Agreement.

14.2 Termination for Cause.

14.2.1 Notice of Breach. If either Party believes that the other is in material breach of this Agreement, then the non-breaching Party may deliver written notice of such breach to the other Party. The allegedly breaching Party shall have thirty (30) days from receipt of such notice to cure such breach; To be an effective notice under this Section, the written notice must (a) identify the alleged breach, and (b) explicitly state that if the breach is not cured the notifying Party will have the right to terminate this Agreement.

14.2.2 Failure to Cure. If the Party receiving notice under this subsection fails to cure the breach within the relevant period, the notifying Party may terminate this Agreement effective immediately upon delivery of a second written notice to the allegedly breaching Party. If Subscriber breaches this Agreement, Service Provider may, in its sole discretion and to the extent permitted by applicable law, choose to suspend or limit Subscriber's access to the

services rather than terminate the Agreement.

14.2.3 Termination without cause. Either Party may terminate this Agreement without assigning any reason or cause by providing the other Party an advance written notice of 30 days.

14.3 Effects of Termination. Upon termination of this Agreement:

14.3.1 neither Party shall have any continuing obligations to the other except as required by applicable law and/or as expressly required herein. Termination of this Agreement shall not negate or affect, and the Agreement shall remain in full force and effect regarding, any obligations or liabilities incurred by either Party prior to the effective date of the termination;

14.3.2 except that all indebtedness of either party to the other shall become immediately due and payable on the effective date of the termination. Each Party shall have the right to pursue any other remedies available to it at law or in equity.

14.3.3 Unless otherwise agreed to in a post-termination writing signed by other Parties, each Party will return to the other, or at the Disclosing Party's option securely destroy, all Confidential Information within thirty (30) days, retaining only such copies that are required to comply with applicable legal, accounting, or record-keeping requirements.

14.3.4 Without prejudice to anything contained herein, the Service Provider agree and undertake that the Investment Product(s) issued pursuant to this Agreement prior to the expiry of the Term or the early termination of this Agreement shall continue to be serviced in accordance with the terms contained in this Agreement and such expiry or termination of this Agreement shall not affect any rights or obligations of the Customer. It is hereby agreed that all obligations and responsibilities of Service Provider with respect to such Investment Product(s) shall continue to be in effect and shall survive expiry of the Term or termination of this Agreement.

15 INDEMNIFICATION AND LIMITATION OF LIABILITY

15.1 Each Party ("Indemnifying Party") shall, at its own expense, indemnify, defend and hold harmless the other party and its Affiliates, their respective officers, directors, personnel, representatives, consultants, nominees, designees from and against any and all liability suffered or incurred by the such other Party ("Indemnified Party") (including but not limited to liabilities, judgments, damages, losses, claims, , costs, fines, penalties, charges, proceedings, suits, actions and expenses, including attorneys' fees and expenses) or any other loss that may occur , arising from or relating to or by reason of:

15.1.1 Acts, commissions, omissions, errors, fraudulent act, misfeasance, representations, misrepresentations, misconduct, negligence of the Indemnifying Party and/or its personnel in performance of its obligations under this Agreement.;

15.1.2 Any breach of any of the provisions of this Agreement, including but not limited to the obligations pertaining to confidentiality, data protection and intellectual property by the Indemnifying Party or its Personnel;

15.1.3 Any breach of Applicable Laws by the Indemnifying Party or its personnel;

15.2 Notwithstanding anything contained in the Agreement or in any other document, neither Party will be liable to the other Party for any indirect or consequential loss or damage including, without limitation, any indirect loss of business or profits.

15.3 The maximum aggregate amount that the Service Provider or any party claiming through it can recover from the Subscriber all claims arising from, under or relating to this Agreement (whether in contract, tort including negligence or otherwise) will in no event exceed the Fees

paid by the Service Provider to the Subscriber in the preceeding (12) months from the date generated by the Subscriber under the Agreement

15.4 The maximum aggregate amount that or Subscriber or any party claiming through it can recover from the Service Provider for all claims arising from, under or relating to this Agreement (whether in contract, tort including negligence or otherwise) subject to exception of claims arising out of (i) breach of applicable laws; (ii) fraud, gross negligence and willful misconduct and (iii) breach of data protection obligation; will in no event exceed the total amount invested by the Customer under the Investment Products in (12) months from the date of claim under the Agreement

15.5 All indemnities shall survive expiry or termination of this Agreement.

16 NO EXCLUSIVITY

16.1 The Parties acknowledge that this Agreement is non-exclusive and that either Party will be free, during and after the Term, to engage or contract with third parties for the provision of services similar to the Services.

17 CROSS SELL AND NON -SOLICITATION

17.1 The Service Provider agrees that the Service Provider or the Service Provider's Partner(s) shall not during the Term of this Agreement and for a period of 2 (Two) years after the termination of this Agreement shall cross-sell any other product or services to the Customer(s) of the Subscriber. Further, the Service Provider shall not solicit or make an attempt to solicit the Customer(s) whether directly or indirectly through itself, its personnel or any third party to reduce the business or services generally undertaken by the Customer of the Subscriber or avail similar services through the Service Provider or any third party.

18 FORCE MEJAURE

18.1 Neither Party shall be liable for any non-performance or delay which is due to reasons beyond its control including fires, explosions, earthquakes, drought, and floods; war, invasion and act of foreign enemies; rebellion, revolution, insurrection, or military or usurped power, or civil war; acts or threats of terrorism; riot, commotion, strikes, go slows, lock outs or disorder, pandemic and other similar events ("Force Majeure"). The Party whose performance is affected by an event of Force Majeure shall as soon as practicable notify the other Party in writing of the occurrence and end of the Force Majeure, failing which the Party claiming the benefit of Force Majeure shall not be entitled to any relief, unless otherwise agreed in writing by the other Party. In the event that any Force Majeure event continues for a period in excess of One (1) month, the other Party shall be entitled to terminate this Agreement immediately by giving written notice.

19 GOVERNING LAW & DISPUTE RESOLUTION

19.1 This Agreement and any disputes or claims arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) are governed by and construed in accordance with the laws of India. Each of the Parties agree that, if any dispute(s) or difference(s) shall arise between the Parties in connection with or arising out of this Agreement, the Parties shall attempt, for a period of 30 (thirty) days from the receipt of a notice from the other Party of the existence of a dispute(s), to settle such dispute(s) by mutual discussions between the Parties.

19.2 If the said dispute(s) cannot be settled by mutual discussions within the thirty-day period provided above, either Party may refer the matter to a sole arbitrator to be mutually appointed in accordance with the Arbitration and Conciliation Act, 1996 and any amendments thereof. The arbitration proceedings shall be held under the provisions of the Arbitration and

Conciliation Act, 1996 and any amendments thereof. The arbitration proceedings shall be held in English language at Gurugram.

19.3 This Agreement shall be governed by and construed in accordance with the laws of India. The adjudication of any dispute will be the exclusive jurisdiction of the courts of Gurugram.

20 MISCELLANEOUS

20.1 **Relationships of the parties:** Nothing in this Agreement shall be construed to create the relationship of employer and employee, principal and agent, partnership or joint venture, or any other fiduciary relationship. No Party may act as agent for, or on behalf of, the other party in any manner.

20.2 **Entire Agreement:** This Agreement, and any annexures, duplicates, or copies, constitutes the entire agreement between the Parties with respect to the subject matter of this Agreement, and supersedes all prior negotiations, agreements, representations, and understandings of any kind, whether written or oral, between the Parties, preceding the date of this Agreement.

20.3 **Amendments and Assignment:** This Agreement may be amended only by written agreement duly executed by an authorized representative of each party (email is acceptable). This Agreement shall not be assigned by either party without the express, written consent of the other party

20.4 **Severability:** If any provision or provisions of this Agreement shall be held unenforceable for any reason, then such provision shall be modified to reflect the parties' intention. All remaining provisions of this Agreement shall remain in full force and effect for the duration of this Agreement.

20.5 **No Waiver:** A failure or delay in exercising any right, power or privilege in respect of this Agreement will not be presumed to operate as a waiver, and a single or partial exercise of any right, power or privilege will not be presumed to preclude any subsequent or further exercise, of that right, power or privilege or the exercise of any other right, power or privilege.

20.6 **Time:** The Parties agrees that time is of the essence in this Agreement.

20.7 **Notice:** Any notice, demand, or request with respect to this Agreement shall be in writing and shall be effective only if it is delivered by personal service, by air courier or emailed to the address set forth above. Such communications shall be effective when the addressee receives them.

20.8 **Headings:** The numbering and captions of the various sections are solely for convenience and reference only and shall not affect the scope, meaning, intent or interpretation of the provisions of this Agreement, nor shall such headings otherwise be given any legal effect.

The Parties have read and understood all the terms herein and are voluntarily, free of any coercion, signing this Agreement on the date stated in the introductory clause.

For Blostem Fintech Private Limited	For One MobiKwik Systems Limited
Sandeep Garg Authenticated through Leegality.com (aQPjcG6) Sandeep Garg Date: Fri Jan 12 17:53:21 IST 2024	Bipin Authenticated through Leegality.com (aQPjcG6) Bipin Preet Singh Date: Fri Jan 12 18:14:17 IST 2024
Name: Sandeep Garg Designation: Director	Name: Bipin Preet Singh Designation:

ANNEXURE - I

The Service Provider shall provide the API(s) and Products containing details of the Investment Product(s) of the Service Provider Partners. The API(s) shall have functionalities including without limitation (i) booking such Investment Product(s); (ii) making payments for the Investment Product(s); (iii) status of the Investment Product(s) etc.

Scope of Services and Roles of the Parties:

1. Sourcing of the Customer will be done by Subscriber through its website / mobile application or any other channel agreed between the Parties.

2. Investment Product(s) Application along with KYC and PII information collection to be done by Subscriber through digital process.

3. Service Provider to provide Investment Product(s) creation platform for passing the FD application / KYC information to respective Service Provider's Partners. The Service Provider shall provide the APIs as per the requirement under this Agreement.

4. Payments for investments will be processed through RBI authorised payment gateway/payment aggregator Funds after getting debited from customer's account are settled directly into Service Provider's Partners Settlement A/c by payment aggregator.

5. On successful completion of Investment Product application and deposit of funds for the Investment Product, the Service Provider shall make its best efforts to ensure that the Service Provider Partner to send confirmation message for receipt of application on Email / SMS to the Customer on the same day of application of Investment Product. In the event that the Service Provider's Partner fails to fulfil this obligation, the Service Provider will promptly address the matter with the Service Provider's Partner, making diligent efforts to resolve the issue.

6. The Service Provider shall ensure that the reconciliation of fund settlement is done by respective Service Provider Partner and shared with the Subscriber in a timely manner In the event that the Service Provider's Partner fails to fulfil this obligation, the Service Provider will promptly address the matter with the Service Provider's Partner, making diligent efforts to resolve the issue.

7. Service Provider shall make its best efforts to ensure that the verification of Investment Product application along with KYC checks is completed by the respective Service Provider Partners in a timely manner. In the event that the Service Provider's Partner fails to fulfil this obligation, the Service Provider will promptly address the matter with the Service Provider's Partner, making diligent efforts to resolve the issue.

8. The Service Provider shall make its best efforts to ensure that the Investment Product(s)

confirmation receipt must be shared by Service Provider Partners to Customers on their Emai ld (as per the TAT shared by the respective service provider's partner in T & C) to the Customer.

9. In case of any discrepancy, same to be shared by Service Provider Partners to customers on email / sms and also to Service Provider. In turn, Service Provider to intimate the same to Subscriber.

10. Subscriber to help resolve the discrepancies in Investment Product application by collecting requisite additional documents / information from the Customer and sharing with Service Provider which to be shared onwards with respective Service Provider Partner.

11. The Service Provider shall be responsible for provision of Customer support and grievances. The Subscriber shall provide the first level support to the Customers, where the Customers can log in their complaints and grievances. The Service Provider shall connect and facilitate with the respective Service Provider's Partner and ensure resolution of the grievance of the Customer as per the Turn Around Times of the Service Provider Partner.

12. Maturity Proceeds / Interest Payout to be processed by Service Provider Partners to customer's registered bank account. The Service Provider shall make its best efforts to ensure TAT shared with customers in T&Cs are adhered by the Service Provider's Partners. In the event that the Service Provider's Partner fails to fulfil this obligation, the Service Provider will promptly address the matter with the Service Provider's Partner, making diligent efforts to resolve the issue.

13. Customer will have an option for Pre-Maturity Withdrawal through respective Service Provider Partners channels – Call Center, Website or Branch. For Service Provider Partners which have enabled withdrawal through API's customers will be able to initiate withdrawal through Subscriber's Mobile App.

14. Any other FD operations like Nominee Updation , change of registered bank account, Form 15G/H submission etc to be done by customer through Service Provider Partners channels.

15. The Service Provider shall ensure that all the data in relation to transactions undertaken by the Customer with respect to Investment Product(s) is shared with the Subscriber. This data should include without limitation: (a) investment amount; (b) investment date; (c) confirmation from the Service Provider Partner on successful completion of the Investment Product application and issuance of Investment Product to the Customer; (c) refunds transaction data (if any); (d) Nominee details; (e) status of Investment Product and payment reconciliation data; (f) monitoring data (if any) as agreed between the Parties.

ANNEXURE II

FEE/CONSIDERATION

1. **On-Boarding & Set up Fees**

   Service Provider shall charge one-time setup & integration fees of INR 1,00,000 +GST for the same.

2. **Commission on FD Distribution**

   The commission shall be paid to the Partner as per Annexure II A.

3. **Payment Terms**

- **One Time Implementation Fee :** within 30 days of acceptance of offer

- **Monthly Commission Pay-out :** The Payout would be done within 15 days of receipt of invoice.

Annexure II A- Referral/ Distribution Fees to be paid to Partner

1. **Fixed Deposit Commissions:** Service Provider shall pay monthly commission to the distributor based on the New FD distributed by Subscriber using his own platform. The commission shall be paid on upfront basis as per the below slabs:

Bajaj Finance FD Commissions

Bajaj Finance	**Monthly Volume**		
FD Tenure	**Upto 2.5cr**	**Upto 5cr**	**More than 5cr**
12 to 23 Months	0.47%	0.55%	0.60%
24 to 35 Months	0.68%	0.72%	0.77%
15 Months	0.43%	0.51%	0.55%
36 to 47 Months	0.98%	1.11%	1.15%
44 Months	0.89%	1.02%	1.06%
48 to 60 Months	1.32%	1.36%	1.40%

Shriram Finance FD Commissions

Shriram Finance	Monthly Volume	
FD Tenure	**Upto 5cr Volume**	**Above 5 Cr**
12 Months	0.26%	0.43%
18 Months	0.26%	0.43%
24 Months	0.51%	0.72%
30 Months	0.51%	0.72%
36 Months	1.02%	1.49%
42 Months	1.02%	1.49%
50 Months	1.11%	1.57%
60 Months	1.19%	1.66%

Mahindra Finance FD Commissions

Mahindra Finance	Monthly Volume	
FD Tenure	**Upto 2cr Volume**	**Above 2 Cr**
12 Months	0.10%	0.34%
24 Months	0.34%	0.60%
36 Months	0.68%	0.94%
48 Months	0.77%	1.02%
60 Months	0.85%	1.11%

2. Terms & Conditions

- The above commission structure is based on current commission rate of product provider and are subject to change if the same gets revised by product Provider.
- All Commissions for the Bajaj Finance FD are Inclusive of GST & TDS as applicable and Mahindra and Shriram is exclusive of GST & TDS
- Commissions on the NBFCs FD would be paid upfront at the time of distribution of FD. This will be calculated and paid on monthly basis. However, the commissions for the Mahindra and Shriram finance FD will be 50% of the payout to be paid upfront, while balance shall be paid at the end of quarter.

- Claw-back for prematurity cases on a pro-rata basis will be applicable

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ANNEXURE – III ENTERPRISE SERVICE LEVEL AGREEMENT

1. API uptime Commitment:

The Service Provider agrees to maintain a monthly Application Programming Interface (API) Uptime as per the below table. "Uptime" is defined as the total time during which the API services are fully operational and available for use by the Subscriber and its Customers, excluding scheduled maintenance windows communicated to the Subscriber in advance or any outage on account of Service Provider Partners.

Services Description	**Uptime Percentage**	**Frequency**
1. The FD booking API's will be available and operational to process transaction services 7 days a week 24 hours a day	99.00%	Calculated on Monthly basis
2. The software will process authorization requests within the time, such that this will ensure that transaction time-outs as per the limits defined by FD Issuers	99.50%	Calculated on Monthly basis
3. The API's will receive and respond to transactions that arrive to the system	99.50%	Calculated on Monthly basis
Gateway Link SLs: Gateway link available will be provided on a 7 day a week 24 hours a day basis for all links. Any outage on account of the Gateway provider such as Razor pay/CAMSPay/CCAvenue to be excluded.	99.00%	Calculated on Monthly basis
Batch Processing SLs: All the backend jobs on status APIs to fetch the Status of Transactions at a defined interval (Every 4 hours) shall execute without fail.	99.00%	Calculated on Monthly basis
Reporting SLs: The Dashboard / Transaction Data API's will be available and operational to process transaction services 7 days a week 24 hours	99.00%	Calculated on Monthly basis

a day		
Customer Facing SLs: Any web/SMS based delivery tool for customer use will be available for client use 7 days a week 24 hours a day	99.00%	Calculated on Monthly basis
Customer facing application (any web based/ SMS delivery tool for customer use) will respond to simple customer queries within 10 seconds	95.00%	Calculated on Monthly basis

Scheduled Maintenance:

Service Provider may perform scheduled maintenance on the APIs services, during which the services may be temporarily unavailable. Any scheduled maintenance undertaken by the Service Provider shall be communicated to the Subscriber atleast 3 (Three) business days in advance. The Service Provider agrees to undertake the scheduled maintenance only in the non-business hours of the Subscriber i.e 12:00 Hours to 6:00 Hours of a day. Any deviation shall be discussed and mutually agreed between the Parties.

Monitoring:

Service Provider will implement continuous monitoring systems to track API uptime, promptly notifying the Client of any potential or actual service interruptions. The monitoring tools will be configured to provide real-time insights into the performance and availability of the API.

2. ISSUE RESPONSE AND RESOLUTION COMMITMENTS:

During the Term of this Agreement and for so long as Subscriber is entitled to receive the Services hereunder, Service Provider shall provide the following product support services through its Support Center ("SC") for the services infrastructure as follows:

a. The SC will be the primary point of contact for all product support inquiries. The SC may be contacted via email at **support@blostem.com**
b. Subscriber and the SC contact will work together to assign a severity level when the support inquiry is initiated in accordance with the severity level descriptions herein. The Severity level describes the impact that the problem is having on Subscriber ability to effectively use the Services, API Service or Integrated Service. The Severity Level initially assigned can be modified if circumstances warrant it and the appropriate representatives of Subscriber and Service Provider agree. In this instance,

Subscriber will agree to a target time-scale with Subscriber for recovery/resolution of issue.

Severity Level	Description	Response Time	Resolution Time
Severity Level 1	Severity Level 1 is a major impact with central site system or critical component failure, business or service function completely unavailable or impacting all customers.	< 30 minutes (Clock Hours)	< 3 Hours (Clock Hours)
Severity Level 2	Severity Level 2 is service impact with preventable business or service function problems with limited number of customers affected.	< 180 minutes (Business Hours)	<24 hours (Business Hours)
Severity Level 3	Severity Level 3 is minimal impact with minimal impact to any customer.	< 6 Hours (Business Hours)	< 72 hours (Business Hours)

Communication:

Service Provider agrees to provide regular updates to the Subscriber during the issue resolution process, including the estimated time of resolution. Updates will be communicated via specified channels, ensuring transparency and collaboration throughout the incident resolution.

Root Cause Analysis:

In the aftermath of any service interruption, Service Provider will conduct a thorough root cause analysis and share the findings with the Subscriber. This analysis will include preventive measures to avoid similar incidents in the future.

3. ESCALATION MATRIX:

3.1 Primary Contact:

The primary point of contact for day-to-day operational issues will be Sushree Nanda. Contact details: sushree@blostem.com, 9096125550. The primary contact will be available during business hours 10 am to 6.30 PM.

3.2 Escalation Levels:

Level 1 Escalation:

If an issue is not resolved within the agreed-upon timeframe, it will be escalated to Uday Sharma. Contact details: uday@blostem.com , 9953065125. Response time for Level 1 escalations is 24 hours.

Level 2 Escalation:

If the issue persists beyond Level 1 escalation, it will be further escalated to Sandeep Garg. Contact details: sandeep@blostem.com , 85888 90832. Response time for Level 2 escalations is [24 hours].

Level 3 Escalation:

In rare cases where the issue remains unresolved, it will be escalated to Ravi Jain, who will work closely with both parties to expedite resolution. Contact details: ravi@blostem.com, 99583 66027 Response time for Level 3 escalations is [24 hours].